Humana. Claims Payment Policy

Subject: Modifier 78

Application: Medicare Advantage, Kentucky Medicaid and Oklahoma Medicaid Products
Policy number: CP2013106
Related policies: Common CPT and HCPCS Modifiers

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Overview

Modifier 78 identifies an unplanned return to the operating or procedure room, by the same physician or other qualified health care professional, following the initial procedure for a related procedure during the postoperative period.

This policy outlines Humana's reimbursement for a service reported with modifier 78.

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Medicare Advantage Payment Policy

In addition to the policy, claims payments are subject to other plan requirements for the processing and payment of claims, including, but not limited to, requirements of medical necessity and reasonableness and applicable referral or authorization requirements.

This policy applies only to charges for practitioner services for procedure codes identified, in the *Medicare Physician Fee Schedule (MPFS) Relative Value file*, as having global surgery periods.

Humana plans consider a return trip to the operating or procedure room, as indicated by the use of *modifier 78*, as surgical only and allow the appropriate rate for the service, which is the practitioner's contracted rate or *base maximum amount payable under the member's plan*, multiplied by the MPFS intraoperative percentage.

For a charge for an unlisted code submitted with *modifier 78*, Humana plans allow 50 percent of the intraoperative amount of the original surgical procedure that resulted in the return to the operating or procedure room.

Multiple surgery and bilateral rules do not apply on return trips to the operating or procedure room.

Reimbursement for *modifier 78* charges for assistant at surgery services is not subject to multiplication by the intraoperative percentage.

It is inappropriate to bill *modifiers 76, 77* or *79* with *modifier 78*; therefore, Humana plans deny a charge submitted with *modifier 78* and any of those modifiers.

Kentucky Medicaid Payment Policy

In addition to the policy, claims payments are subject to other plan requirements for the processing and payment of claims, including, but not limited to, requirements of medical necessity and reasonableness and applicable referral or authorization requirements.

This policy applies only to charges for practitioner services for procedure codes identified, in the *MPFS Relative Value file*, as having global surgery periods.

Humana allows a return trip to the operating or procedure room, as indicated by the use of *modifier 78*, at 70 percent of the practitioner's contracted rate or *base maximum amount payable under the member's plan* for the service.

Note: In certain circumstances, additional payment rules may apply. For example, when applicable, claims are subject to the Humana Healthy Horizons in Kentucky out-of-network payment policy. For more information, see the relevant guidance in the References section of this policy.

Oklahoma Medicaid Payment Policy

In addition to the policy, claims payments are subject to other plan requirements for the processing and payment of claims, including, but not limited to, requirements of medical necessity and reasonableness and applicable referral or authorization requirements.

This policy applies only to charges for practitioner services for procedure codes identified, in the *MPFS Relative Value file*, as having global surgery periods.

Humana allows a return trip to the operating or procedure room, as indicated by the use of *modifier 78*, at 79 percent of the practitioner's contracted rate or *base maximum amount payable under the member's plan* for the service.

Definitions of *Italicized* Terms

- ***Base maximum amount payable under the member's plan:*** The maximum amount of reimbursement for a covered expense, determined by the member's plan. Depending on the plan, this may be the maximum allowable fee, the appropriate Medicare fee schedule rate or an amount derived from another payment model. Actual plan reimbursement may be less than this base maximum amount, because of applicable adjustments.
- ***Medicare Physician Fee Schedule (MPFS) Relative Value file:*** A file published by the Centers for Medicare & Medicaid Services that includes, among other information, intraoperative percentage, relative value units and conversion factors for physician services. This file is commonly referred to as the relative value unit (RVU) table.
- ***Modifier 76:*** Repeat procedure or service by same physician or other qualified health care professional.
- ***Modifier 77:*** Repeat procedure by another physician or other qualified health care professional.
- ***Modifier 78:*** Unplanned return to the operating/procedure room by the same physician or other qualified health care professional following initial procedure for a related procedure during the postoperative period.
- ***Modifier 79****:* Unrelated procedure or service by the same physician during the postoperative period.

References

- Centers for Medicare & Medicaid Services website. Medicare Claims Processing Manual Chapter 12 – Physicians/Nonphysician Practitioners. Sections 40.2.A.5 and 40.4. www.cms.gov.
- Centers for Medicare & Medicaid Services website. Medicare Physician Fee Schedule (MPFS) Relative Value Files. www.cms.gov.
- Centers for Medicare & Medicaid Services website. Medicaid National Correct Coding Initiative Policy Manual. Chapter 1 – General Correct Coding Policies. Section D. – Evaluation & Management (E&M) Services. www.cms.gov.
- Kentucky Cabinet for Health and Family Services website. Department for Medicaid Services. chfs.ky.gov.
- Oklahoma Health Care Authority website. Oklahoma's Medicaid Agency. oklahoma.gov.
- American Medical Association. Coding with Modifiers.
- American Medical Association's CPT® and associated publications and services.
- Humana website. Humana Healthy Horizons in Kentucky. Humana.com.
- Humana website. Humana Healthy Horizons in Kentucky Policies Booklet. Out-of-Network Provider Requirements and Claim Payment Policy. Humana.com.
- Humana website. Humana Healthy Horizons in Oklahoma. Humana.com.

General Humana Resources

- Availity – Providers can register for access to information on a variety of topics such as eligibility, benefits, referrals, authorizations, claims and electronic remittances.
- Claims processing edit notifications – Alerts of upcoming claims payment changes are posted on the first Friday of each month.
- Claims resources – Providers can find information on referrals, authorizations, electronic claim submissions and more.
- Making it easier – This page contains an educational series for providers and healthcare professionals.
- Medical and pharmacy coverage policies – Humana publishes determinations of coverage of medical procedures, devices and medications for the treatment of various conditions. There may be variances in coverage among plans.
- Publications – This page can help you find our quarterly newsletter, provider manual and other resources to help you do business with us.

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